# Whose Name, What Date?

Things to notice and note about Mom's papers and property before an attorney reviews them.

You've read Mom's power of attorney twice, and you're still not sure which parts an attorney would want to hear about. This guide names fifteen details worth noticing and, for each, what to write down.

Notice and record. Don't interpret. What a name, a date or a sentence means is a question for an elder law attorney, and your notes are what make that conversation useful. The words for the roles on the papers come from the Consumer Financial Protection Bureau's guides. The wording about what to write down is ours.

## On the papers themselves

### 1 The date on each document

**NOTICE** The date each paper was signed, and whether there is an older and a newer version of the same kind.

**WRITE DOWN** Each document, its date, and where you found it. Keep every version.

### 2 Who is named, and as what [1] [2]

**NOTICE** The names beside words like agent, attorney-in-fact, successor agent, trustee and successor trustee.

**WRITE DOWN** Each name exactly as written, the role, and which document it is in.

### 3 Whether the people named are still in the picture [3]

**NOTICE** A named person who has died, moved far away, become ill, or fallen out of touch.

**WRITE DOWN** What has changed, as a fact with a rough date.

### 4 When a document says it starts [1]

**NOTICE** Any sentence about when the paper takes effect: right away, or only when Mom can no longer make her own decisions.

**WRITE DOWN** The sentence, word for word, with the page number. Don't work out whether it is in effect.

### 5 Originals and copies [1]

**NOTICE** Whether you are holding the signed original or a photocopy, and who has the other.

**WRITE DOWN** Where each original is and who has copies. If someone asks for the power of attorney, give a copy and keep the original.

### 6 Papers you've heard about but haven't seen

**NOTICE** A trust someone remembers Dad setting up, a will mentioned at a holiday, a law office's name on an old envelope.

**WRITE DOWN** What was said and who said it. Mark it not found, which is different from doesn't exist.

## The house and other property

### 7 The names on the deed

**NOTICE** Whose names appear on the deed or the property tax bill, and any words that follow the names.

**WRITE DOWN** The names and the wording, copied exactly, with the deed's date.

### 8 Accounts with more than one name [1]

**NOTICE** A statement addressed to Mom and someone else, or an account a son or daughter was added to so they could pay the bills.

**WRITE DOWN** Which accounts, whose names, and when the second name was added if you know. Before any change to one, the CFPB's guide says to get legal advice.

### 9 What a trust actually holds [2]

**NOTICE** Whether the deed or any account statement shows the trust's name, or still shows Mom's own.

**WRITE DOWN** What you can see is in the trust's name, what isn't, and what you can't tell.

### 10 Beneficiary forms

**NOTICE** Paperwork for an insurance policy or a retirement plan that names who receives it.

**WRITE DOWN** Who is named, on which policy or plan, and the date of the form.

## What has changed hands, or might

### 11 Gifts and transfers already made [1]

**NOTICE** Money given to children or grandchildren, a car signed over, a name added to the house, property sold to a relative.

**WRITE DOWN** What it was, who received it, the date, and any paper that records it. Facts only.

### 12 Changes the family is talking about

**NOTICE** The suggestions that come up at the kitchen table: put the house in someone's name, move the savings, add a name to an account.

**WRITE DOWN** Who suggested what, and when. Keep these on their own list, marked being considered.

## Mom and the people around her

### 13 How Mom is handling decisions

**NOTICE** What you have actually seen: bills paid or left unopened, a form she read and signed herself, a day she wasn't sure what a paper was.

**WRITE DOWN** What happened, the date, and who was there. No conclusions about what she can or can't decide.

## 14 Whether Mom is married

**NOTICE** Whether Mom has a spouse, where that person lives, and which things are in whose name.

**WRITE DOWN** The plain facts, and nothing about what they mean.

## 15 What people ask you for [1]

**NOTICE** The rehab's business office asking for the power of attorney, or a bank that wants its own form signed instead.

**WRITE DOWN** Who asked, what they asked for, the date, and what you gave them.

**When a note isn't enough**

Some things on this list are questions for a person, not notes for later: a document you need to rely on and can't follow, a change to the house or an account that someone is ready to make, a request to sign something on Mom's behalf. Take those to an elder law attorney. The CFPB's guide for people acting under a power of attorney says to get legal advice and be very careful about decisions that may affect eligibility for Medicaid.

**What this guide doesn't do**

It doesn't say what any of these details mean: whether a document is valid, who has authority to act for Mom, or how anything would be treated by Medicaid. Nothing here is legal, financial or tax advice, and rules vary by state. An elder law attorney answers those questions, and does it better with your notes in front of them.

### Ready for the next step?

You've noticed and noted. The planning interview asks about your family's situation and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for Mom's care.

**Get Your Free Planning Report ›**

**WHERE THIS COMES FROM**


1. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
2. Consumer Financial Protection Bureau, Managing someone else's money: Help for trustees under a revocable living trust
3. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options